

TENTATIVE RULINGS

DEPARTMENT N17

Judge Craig L. Griffin

Date: June 22, 2026

Time: 2:00 PM

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1	Han v. FCA US LLC	Before the Court is the motion for attorney's fees and costs filed by Plaintiff Hee Sung Han against FCA US LLC (FCA). The Motion is GRANTED, in part, as set forth herein. FCA does not dispute that plaintiff is entitled to recover fees but does dispute the amount requested. The Song-Beverly Consumer Warranty Act, Civil Code section 1794, subdivision (d), provides a prevailing buyer in an action under this section "shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794(d).) To award attorney fees under the Song-Beverly Consumer Warranty Act, the trial court is required to "make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved." (<i>Nightingale</i>

v. Hyundai Motor America (1994) 31 Cal.App.4th 99, 104.) "A prevailing buyer has the burden of showing that the fees incurred were allowable, were reasonably necessary to the conduct of the litigation, and were reasonable in amount." (Ibid.) (Internal quotations omitted.)

With regard to the determination of a reasonable hourly rate, the court may rely on its own knowledge and familiarity with the legal market as well as the experience, skill, and reputation of the attorney requesting fees, the difficulty or complexity of the litigation to which that skill was applied, and declarations from other attorneys regarding prevailing fees in the community and rate determinations in other cases. (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 41.) A trial court has broad discretion to determine the amount of reasonable attorney's fees, as an experienced trial judge is in the best position to decide the value of professional services rendered in court. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.)

The court has reviewed the documents submitted by the parties, along with documents in the Register of Actions. This was not a complex case and did not involve novel issues. In fact, based on the billing submitted, it appears only a single one-hour deposition was taken. Based on the court's review, several entries were not reasonable charges.

For example, in this action there were two law firms representing the same plaintiff which resulted in frequent duplicative entries for communications where one attorney updated the other on what they were doing. Further, the time spent billing for the motion for summary judgment and related documents was excessive, given the nature of the issues raised therein. Also, the instant motion for fees was not complicated and the requested fees were unreasonable. The court finds six hours of time to be reasonable for the entire fees motion and hearing.

The court also notes that according to the billing entry on 2/23/26, before the instant fees motion was filed, FCA requested a copy of plaintiff's counsel's time records in an apparent attempt to resolve the issues in this motion. Plaintiff replied by "declining voluntary production of time records." In the future, reasonable efforts should be made to resolve these type of motions, including producing the time records which will ultimately be submitted in support of the fees motion.

Mr. Beck also seeks recovery of time spent by his legal assistant. The court finds that many of the entries relate to service and filing of documents which are part of office overhead. Further, entries on 12/3/25, 3/6/25 and 11/21/24 relate to invoices and expenses which appear to be law firm accounting tasks.

Based on the court's review of the documents submitted and the court's file, as well as the court's knowledge of this case and similar cases brought under the Song Beverly Act, the court finds the following hours and rates to be reasonable in this case:

	Reasonable Rate	Reas. Hours	Amount
Benjeman Beck	\$450	62.2	\$27,990
Misoo Choi Kimbal	\$350	19.3	\$6,755
De Los Santos	\$100	12	\$1,200
TOTAL			\$35,945

Plaintiff also requests a 1.5 multiplier. "The amount of attorney fees awarded pursuant to the lodestar adjustment method may be increased or decreased." (*Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 247.) "The trial court is neither foreclosed from, nor required to, award a multiplier. [Citations.]" (*Ibid.*) The Court does not find a multiplier warranted in this instance and **DENIES** the request for a multiplier.

Plaintiff also request an award of costs in the amount of \$3,097.87. FCA does not oppose the request for costs and therefore the request is **GRANTED**.

In total, the Motion is **GRANTED**, in part, and a total of \$39,042.87 is awarded as fees and costs (\$35,945 + \$3,097.87).

Counsel for Plaintiff is to give notice of this ruling.

2 Green v. Cleeland

The unopposed Motion for Discovery and Monetary Sanctions filed by plaintiff Michele Green is GRANTED in part and DENIED in part, as set forth herein.

Pursuant to Code Civ. Proc. § 2023.010(d), failing to respond to an authorized method of discovery is a misuse of the discovery process warranting sanctions. So, too, is disobeying a court order to provide discovery. (Code Civ. Proc. § 2023.010(g); *Van Sickle v. Gilbert* (2011) 196 Cal. App. 4th 1495, 1516.) Imposition of sanctions for misuse of discovery lies within the trial court's discretion. (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal. App. 4th 967, 991.) Once a party is ordered by the court to provide responses to discovery, continued failure to respond may result in the imposition of more severe sanctions. (See Code Civ. Proc. §§ 2030.290(c) (interrogatories), 2031.300(c) (requests for production).)

Disobeying a court order to provide discovery is a misuse of the discovery process. Cal. Civ. Proc. Code § 2023.010(g); *Van Sickle v. Gilbert* (2011) 196 Cal.App.4th 1495, 1516.

The moving party need only show the failure to obey the court's earlier discovery orders. Thereafter, the burden of proof shifts to the party seeking to avoid sanctions to establish a satisfactory excuse for his or her conduct. (*Corns v. Miller* (1986) 181 Cal. App. 3d 195, 201; *Puritan Ins. Co. v. Sup.Ct. (Tri-C Machine Corp.)* (1985) 171 Cal. App. 3d 877, 884.)